



CHAPTER IV.

An Act to empower the urban district council of A.D. 1919.
Shoreham-by-Sea to construct a footbridge over the
River Adur and for other purposes.

[15th August 1919]

WHEREAS the district of Shoreham-by-Sea in the county
of Sussex is an urban district within the meaning of the
Local Government Act 1894 and is under the management and
control of the urban district council of Shoreham-by-Sea which
district and Council are in this Act called "the district" and
"the Council" respectively:

And whereas the construction of a footbridge with approaches
thereto forming a means of communication between the areas
on each side of the River Adur within the district would be of
local advantage and it is expedient that the provisions hereinafter
contained with reference to the construction and maintenance
of such footbridge and the approaches thereto should be made
and that the Council should be authorised to levy tolls and
charges for the use of such footbridge:

And whereas it is expedient that the Council should be
empowered to establish ferries across the said river:

And whereas it is expedient that the other provisions con-
tained in this Act be enacted:

And whereas estimates have been prepared by the Council
for the purposes hereinafter mentioned and such estimates are
as follows:—

For and in connexion with the purchase of lands	£
for and the construction of the works authorised	
by this Act	5,300
[Price 2s. 6d. Net.]	1

the provisions of this Act) are hereby incorporated with this Act A.D. 1919.
(that is to say):—

- (1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):
- (2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the works by this Act authorised and “the centre of the railway” means the centre line of the footbridge by this Act authorised.

4. In this Act the several words and expressions to which Interpretation. meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

And in this Act unless the subject or context otherwise requires—

“The district” means the urban district of Shoreham-by-Sea;

“The Council” means the urban district council of the district;

“The footbridge” means the footbridge and approaches and works connected therewith by this Act authorised;

“The ferry undertaking” means the ferry undertaking of the Council as the same from time to time and at any time exists;

“The bridge and ferry undertaking” means the footbridge and the ferry undertaking;

“The Harbour Trustees” means the Shoreham Harbour Trustees constituted under the New Shoreham Harbour Acts 1873 1876 and 1887;

“The clerk” “the treasurer” and “the surveyor” mean respectively the clerk the treasurer and the surveyor of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices;

36 & 37 Vict.
c. cxi.
39 & 40 Vict.
c. cxi.
50 & 51 Vict.
c. xcv.

and conveniences connected therewith and may subject as herein- A.D. 1919.
after provided enter upon take and use such of the lands
delineated on the said plans and described in the deposited
book of reference as may be required for those purposes or any
other purposes of this Act.

The footbridge hereinbefore referred to and authorised by
this Act is a footbridge over the River Adur wholly in the
parish of Shoreham-by-Sea within the district commencing at a
point on the northern side of the said river at the top of the
steps leading to the foreshore forty yards or thereabouts from
the western corner of the public house at the junction of Lower
Road and East Street measured in a southerly direction and
terminating at a point on the roadway on the southern side of
the said river two hundred and thirty-five yards or thereabouts
from the commencement of the bridge measured in a southerly
direction and one hundred and thirty yards or thereabouts west
of the southern approach road to the ferry between Shoreham-
by-Sea and Shoreham Beach.

6. Subject to the provisions of this Act and within the Subsidiary
works.
limits of deviation shown on the deposited plans the Council
may in connexion with the footbridge and for the purposes of
access thereto make junctions and communications with any
existing streets or roads which may be intersected or interfered
with by or be contiguous to the footbridge and may make
diversions widenings or alterations of the lines or levels of any
existing streets or roads for the purpose of connecting the same
with the footbridge or otherwise and may alter divert or stop
up all or any part of any drain sewer watercourse river
navigation stream channel or gas or water main or pipe or
other pipe or wire or apparatus within the said limits the
Council providing a proper substitute before interrupting the
flow of sewage in any drain or sewer or of any gas or water
in any main or pipe or of electricity in any wire or apparatus
and making compensation for any damage done by them in the
execution of the powers of this section.

7. Subject to the provisions of this Act the Council may Incidental
powers in
connexion
with con-
struction of
footbridge.
during the construction or for the purposes of the footbridge
and approaches by this Act authorised place and keep on or
in the banks bed soil and foreshore of the River Adur all such
temporary and permanent works and conveniences as they may

of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. A.D. 1919.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

12. Subject to the provisions of this Act for the purposes of the works authorised by this Act the Council with the consent in writing of the Harbour Trustees may within the limits of deviation defined on the deposited plans dredge and deepen the bed of the River Adur and alter and interfere with the banks bed soil and foreshore of the said river and may drive such piles and erect such temporary staging and other temporary works and conveniences in upon or over the banks bed and foreshore of the said river as may be necessary or convenient and all such works shall be carried out under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer to the Harbour Trustees Provided that no materials excavated or dredged under the provisions of this section shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade. Power to dredge &c.

13. In the construction of the works by this Act authorised the Council may deviate from the lines or position thereof shown on the deposited plans to any extent within the limits of deviation marked on the deposited plans and also from the levels shown on the deposited sections to any extent not exceeding six feet upwards and three feet downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. Limits of lateral and vertical deviation.

14. If the works authorised by this Act are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making and completing such works or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

justices that such omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall be deposited with the clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

A.D. 1919.
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20. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Council shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private
rights of
way over
lands taken
compulsorily.

21. Subject to the provisions of this Act the Council may (if they think fit) and shall if so required by the Harbour Trustees set up and erect proper fenders and posts for the protection of the footbridge and for guiding vessels through the spans arches or openings thereof and to prevent such vessels from being driven thereon or injured thereby and the Council shall from time to time repair and keep in repair the said fenders and posts.

As to placing
fenders &c. on
footbridge.

22. The footbridge shall be at all times maintained opened and worked by the Council so as not to interrupt or interfere with the navigation and traffic of the River Adur and to give and secure precedence and priority to vessels barges and boats requiring to pass through the opening span of the footbridge and in case any such vessel barge or boat shall be wilfully or negligently detained at the footbridge or obstructed delayed or hindered in passing through the opening span thereof or in case any toll or payment shall be demanded or received for the passage of any vessel barge or boat through or under the footbridge the Council or the person in charge of the footbridge

Vessels not
to be de-
tained at
footbridge.

the harbour and the navigation thereof shall not be interfered with more than is absolutely necessary in the execution and maintenance of the said works: A.D. 1919.
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- (3) The Council shall not during the construction of the footbridge or any temporary or permanent works or any alteration in or rebuilding thereof close to navigation the whole of the navigable part of the river without the previous consent in writing (which shall not be unreasonably withheld) of the Harbour Trustees but except as aforesaid the Council shall during the execution of such works maintain to the reasonable satisfaction of the Harbour Trustees a clear opening in the navigable part of the river for the passage of vessels of not less than thirty feet and having a clear headway of not less than ten feet above high-water mark of ordinary tides:
- (4) No pile driver barge or other craft shall at any time except with the consent of the Harbour Trustees (which shall not be unreasonably withheld) be allowed to obstruct any part of the deep water channel of the river:
- (5) The works when commenced shall be proceeded with and completed as early as practicable and the Council shall upon completion of the permanent works upon reasonable notice from the Harbour Trustees so to do remove any temporary works and materials in connexion therewith which may have been placed in the river by the Council and on their failing so to do the Harbour Trustees may remove the same and may recover from the Council the reasonable costs charges and expenses of such removal and the amount of such costs charges and expenses shall be a debt due from the Council to the Harbour Trustees and be recoverable accordingly in any court of competent jurisdiction:
- (6) The Council shall during and after the construction of the footbridge provide and at all times maintain such proper mooring posts buoys dolphins and other works and conveniences on each side above and below the footbridge for the purpose of checking vessels approaching the footbridge in such positions as the

(9) The Council shall pay to the Harbour Trustees such sum as may be reasonably expended by them in examining and approving any plans and sections submitted to them under this section: A.D. 1919.

(10) If any difference arise between the Council and the Harbour Trustees as to any matter or thing affecting the plans or mode of constructing the footbridge and other works by this Part of this Act authorised or under any of the foregoing provisions of this section the same shall be referred to an arbitrator to be agreed between them or failing agreement to be appointed on the application of either party by the Board of Trade and any such arbitration shall except as to the appointment of an arbitrator be subject to the provisions of the Arbitration Act 1889.

24. If the footbridge shall be suffered by the Council to fall into decay so as to be or be calculated to become prejudicial or dangerous to the navigation or any works of navigation or if the Council shall not maintain the footbridge in such condition as to prevent any prejudice or danger to the navigation the Harbour Trustees after reasonable notice to the Council may apply to the Board of Trade to appoint and that Board may thereupon appoint an engineer or inspector to examine the same and report thereon and to specify what works (if any) are necessary or proper to be done for the protection and preservation of the navigation And the Harbour Trustees may thereupon forthwith execute and do the works specified in such report and may recover from the Council the reasonable costs charges and expenses of the examination and report and of executing such works and the amount of such costs charges and expenses shall be a debt due from the Council to the Harbour Trustees and be recoverable accordingly in any court of competent jurisdiction. Power to Harbour Trustees to deal with decayed works.

25. The Council may—

(1) Establish and use ferries over the River Adur between Shoreham-by-Sea and Shoreham Beach at such point or points as they may deem expedient;

(2) Purchase hire provide maintain use and work ferry boats and construct and maintain landing

Establishment of ferries.

ferry undertaking for all or any of the purposes following (that is to say) :— A.D. 1919.

- (A) For regulating controlling and limiting the use of the footbridge and any vessels and boats used for the ferry undertaking and works connected therewith :
- (B) For preventing the commission of nuisances in or upon the footbridge or the approaches thereto and the vessels or boats used for the purposes of the ferry undertaking :
- (C) For preserving the footbridge vessels boats and other works forming part of the bridge and ferry undertaking and preventing injuries and damage to the same :
- (D) For regulating the duties and conduct of all persons whether officers and servants of the Council or not who shall be employed in and about the bridge and ferry undertaking and in and about the footbridge vessels or boats used for the purposes thereof :
- (E) For regulating the conveyance of passengers vehicles and goods across the footbridge and in or upon any vessels or boats and the embarkation and disembarkation of the same respectively and for prohibiting the embarkation of any vehicles or goods in any vessels or boats used for the purposes of the ferry undertaking which may in the opinion of the Council be injurious to or prejudicially affect the use of such vessels and boats or the traffic to be carried therein :
- (F) For regulating and controlling or preventing if thought fit the fastening or mooring of vessels or boats of every description to the footbridge and other works :
- (G) For preventing persons navigating vessels or boats from negligently or wilfully obstructing the working of the bridge and ferry undertaking and the vessels or boats used for the purposes thereof and for preventing any persons with boats horses or carriages or otherwise negligently or wilfully obstructing the approaches to the footbridge the ferries and works or doing anything to hinder or interfere with the proper working of the same :

PART III.

A.D. 1919.

TOLLS.

33. The Council may demand and receive for the use of the footbridge and ferries any tolls not exceeding the sums hereunder mentioned (that is to say):—

Power to take tolls in respect of bridge and ferries.

For each person (each way) the sum of twopence;
and subject to the provisions of this Act and of any byelaw made thereunder all persons shall be entitled to use the footbridge and ferries upon payment of the said tolls.

34. The tolls authorised to be taken by this Act for the use of the footbridge shall as from the expiration of a period of five years after the time fixed for the repayment of the moneys to be borrowed by the Council for the purpose (A) mentioned in the section of this Act of which the marginal note is "Power to borrow" cease to be paid or payable and the footbridge shall at all times thereafter be free from tolls.

Extinction of tolls in respect of bridge.

35.—(1) Without prejudice to any existing right of His Majesty and save as provided by the Army Act nothing in this Act shall extend to authorise any tolls to be demanded or received from any person when on duty in the service of the Crown or from any police officer acting in the execution of his duty.

Exemption from tolls in certain cases.

(2) If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds.

36. A statement of the tolls from time to time appointed by the Council to be taken under this Act shall be exhibited in conspicuous places where such tolls shall respectively be payable.

Statement of tolls to be exhibited.

37. The tolls shall be paid to such persons and at such places upon or near the footbridge or ferries and in such manner and under such regulations as the Council shall by notice annexed to the statement of tolls appoint and the Council may recover such tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction.

Taking and recovery of tolls.

(B) For payment of the costs charges and expenses of this A.D. 1919.
Act the sum requisite for that purpose.

The Council may also with the consent of the Local Government Board borrow such further money as the Council may require for any of the purposes of this Act.

(2) All moneys borrowed by the Council under this Act shall be paid off within the respective periods (each of which is in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purpose (A) above mentioned within forty-five years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (B) above mentioned within five years from the date of the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purpose (A) hereinbefore mentioned the revenue of the bridge and ferry undertaking and the district fund and general district rate:

As regards moneys borrowed for the purpose (B) hereinbefore mentioned the district fund and general district rate:

As regards other moneys borrowed with the consent of the Local Government Board such fund rate or revenue as the Board may prescribe.

The provisions of this subsection shall not limit the powers conferred upon the Council by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes."

(4) In calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned and the power of the Council of borrowing and reborrowing under and for the purposes of this Act shall not be restricted by any of the provisions or regulations of the Public Health Acts.

amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

A.D. 1919.

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or in accordance with the provisions of the section of this Act of which the marginal note is "Power to use sinking fund instead of borrowing" be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct. A.D. 1919.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

50.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund:

(b) Credit such sinking fund with the repayment of an amount of the principal money for the repayment of

section shall be and the same are by virtue of this Act charged A.D. 1919.
indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until

unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1919.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

54.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds

Returns to
Local
Government
Board
respecting
sinking fund.

surplus lands or other moneys received on capital account as follows (that is to say):— A.D. 1919.

First In payment of the working and establishment expenses and cost of maintenance of the bridge and ferry undertaking :

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the bridge and ferry undertaking :

Thirdly In providing the requisite appropriations instalments or payments to sinking funds in respect of moneys borrowed by the Council for the purposes of the bridge and ferry undertaking :

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the bridge and ferry undertaking :

Fifthly In providing a reserve fund for the bridge and ferry undertaking if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to a sum not exceeding ten pounds per centum of the amount of the capital account of the undertaking for the time being which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from the bridge and ferry undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the bridge and ferry undertaking or for payment of the costs of renewing any part of the bridge and ferry undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the amount aforesaid and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund any balance remaining in any year after retaining or setting aside such a sum as may in the opinion of the Council be required for carrying on

a rate be paid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within three months after the expiration of such financial year : A.D. 1919.

- (B) The treasurer shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :
- (c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and twenty unless they shall have been continued by Act of Parliament or provisional order made by the Local Government Board and confirmed by Parliament which order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

61.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more equated periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixed equated periods.

64. All expenses incurred by the Council in carrying into execution the provisions of this Act and not otherwise expressly provided for shall be defrayed as expenses under the Public Health Act 1875. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

A.D. 1919.
 Expenses of
 executing
 Act.

PART V.

MISCELLANEOUS.

65. The Council may erect or fix street fire alarms in such positions in any street road or public place within the district as they think fit. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Fire alarms.

66. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Application of
 section 265 of
 Public Health
 Act 1875.

67. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or of any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of
 appoint-
 ments
 authority
 &c.

68. Whenever the Council or the surveyor or other duly authorised officer of the Council under any enactment or bye-law for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required

In executing
 works for
 owner
 Council only
 liable for
 negligence.

their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms and conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. A.D. 1919.

73. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. As to appeal.

74. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

75. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

76. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

77. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act may be laid and made by an officer of the Council authorised in that behalf or by the clerk. Informations by whom to be laid.

powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. A.D. 1919.

84. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent the said Commissioners and Board are hereby respectively authorised to give. Crown rights.

85. Nothing in this Act contained shall prejudice or affect the powers rights and privileges of the Corporation of Trinity House of Deptford Strond. Saving for Trinity House of Deptford Strond.

86. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act. Costs of Act.

THE ENDORSEMENT WITHIN REFERRED TO.

A.D. 1919.

The within named
consenting the within-mentioned time for repayment of the within-
mentioned principal sum of
is hereby extended to the
day of one thousand nine hundred and
[and the interest to be paid thereon on and from the
day of one thousand
nine hundred and is hereby declared to
be at the rate of per centum per annum].

Dated this day of one thousand nine
hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within named]
of
in consideration of the sum of
pounds paid to me by
of
(hereinafter called "the transferee") do hereby transfer to the transferee
[his] executors administrators and assigns [the within-written security]
[the mortgage number of the revenues of the urban district
council of Shoreham-by-Sea bearing date the day of]
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself and my executors administrators
and assigns do hereby agree to take the said mortgage security subject
to the same conditions.

Dated this day of one thousand nine
hundred and

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FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

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